

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202233

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: CHRISTOPHER MARKS

vs.

DEFENDANT: DENALI WATER
SOLUTIONS, LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on July 14, 2026, Victor Grant Zilinskis, Esq. was appointed to preside as Discovery Facilitator to assist the parties to resolve Plaintiff's Motion to Compel Further Written Responses to Document requests. The notice to appoint discovery facilitators was entered on June 30.

Plaintiff Christopher Marks filed the motion on April 24, 2026, with Defendant and Cross-Complainants filing an opposition on July 7. The Reply brief was filed on July 10.

Given the late appointment of the Discovery Facilitator, the Court is not surprised to have not received a Declaration of Non-Resolution from either party MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing, but also requires that "[t]he Declaration shall not exceed three pages and **shall briefly summarize the remaining disputed issues and each party's contentions.**" (MCR Civ 2.13H(1), emphasis added.)

The matter is continued to the next motion hearing date of August 28, 2026, at 1:30 p.m. in the department to provide the parties with more time to meaningfully participate in the facilitator program.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have

been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/17/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2203564

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: DANIEL BISSMEYER

vs.

DEFENDANT: KONIKU, INC.

NATURE OF PROCEEDINGS: 1) MOTION - RELIEVE COUNSEL
2) MOTION - RELIEVE COUNSEL

RULING

Counsel for Defendants Oshiorenya E. Agabi and Koniku, Inc. A Delaware Corporation ("Defendants"), Inc, with personal service of papers upon Oshiorenya Agabi, filed a motion to be relieved as counsel. A long cause jury trial is set for October 20, 2026, and the court anticipates that there will be no further continuances.

Daniel Bissmeyer ("Plaintiff") did not serve an Opposition to Defendants/Cross-Complainant. The failure to oppose is considered consent to the request. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Counsel's motion is therefore GRANTED in it's entirety.

Counsel is to lodge the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.